

## 24STCV26508 24STCV26508

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Plaintiff's Motion to Compel Further Responses as to

Defendant NPC Investments, LLC to Inspection Demands, Set One, and sanctions of \$2,160

On July 9, 2026, Plaintiff Rebecca Gennette ("Plaintiff") filed this motion for an order compelling Defendant NPC Investments, LLC ("Defendant") to serve further responses to Plaintiff's first set of RFP Nos. 1-17, 20-21, 23-25, and 27-38 within 5 days of the hearing and for an order that Defendant and counsel pay discovery sanctions of \$2,160.

On July 9, 2026, Defendant served verified written supplemental responses to RFP Nos. 1-6, 8, 12, 25, 36-38. (Khanmohamed Decl., Ex. 2.) Defendant also served "employee records" it states are responsive to those document requests. (Id., Ex. 1.) Defendant contends that its service of this supplemental written responses and document production renders the motion moot.

The Court disagrees. To start, the supplemental responses served by Defendant do not include all of the disputed RFPS. Specifically, Defendant has not provided a supplemental response to RFP Nos. 7, 9-11, 13-17, 20-21, 23-24, and 27-35. Nor did it offer any defense regarding these responses in its opposition.

Plaintiff's complaint regarding these requests is that Defendant did not provide a code-compliant response that it would either comply, lacks ability to comply, or objects and refuses to comply. Defendant instead asserted various boilerplate objections and then stated it would produce the employee

handbook or other specific documents in response to some of the requests, and that it would provide the requested information once the parties agreed on a Belaire-West procedure in response to other requests. The Court agrees with Plaintiff that Defendant's responses to RFP Nos. 7, 9-11, 13-14, 24 are not code-compliant because Defendant has not confirmed it is producing all responsive documents, thus begging the question if it is withholding documents from production. Defendant has supplemented its responses to other RFPs where it had previously stated it would need to wait until the parties agreed on a Belaire-West procedure; it should also do the same for RFP Nos. 15-17, 20-21, 23, and 27-35. Thus, the motion is granted as to these requests. Defendant shall serve verified written supplemental responses and responsive documents to RFPs Nos. 7, 9-11, 13-17, 20-21, 23-24, and 27-35 within 10 days of this order.

Plaintiff's request for \$2,160 in attorney's fees is eminently reasonable. The Court orders such discovery sanctions against Defendant and defense counsel, jointly and severally, payable to Plaintiff's counsel within 10 days of this order.

The supplemental written responses Defendant did provide for RFP Nos. 1-6, 8, 12, 25, 36-38 are code-complaint; Plaintiff does not argue otherwise. Plaintiff maintains that Defendant has still not produced all responsive documents to those requests. While Defendant claims it has produced "all employee records," Plaintiff contends that the production does not include, for example, any payroll records. The Court concludes that the motion to compel further written responses for these RFPs is moot given that Defendant has provided an adequate response, albeit late. To the extent Plaintiff contests Defendant's compliance with its stated intention to produce all responsive documents, Plaintiff's remedy is to file a motion to compel compliance under CCP Section 2031.230. The parties must first participate in an IDC with the Court to attempt to resolve the dispute informally. The Court will schedule that IDC with counsel at the hearing.

One last thing. Defendant finds itself in this position due to its own inaction. Plaintiff had no choice but to file the motion to compel further after defense counsel failed to respond to Plaintiff's counsel's June 30, 2026 email requesting counsel's availability for an IDC. (Doidge Decl., Ex. 5.) Plaintiff's counsel sent that email to Department 515's resource account (copying defense counsel) after defense counsel failed to get back to Plaintiff's counsel about prior requests for an IDC. Defense counsel utterly failed to

follow this Court's expectation that the parties participate in an IDC by not responding to counsel's request to schedule an IDC. Defense counsel does not even acknowledge the failure to participate in the IDC process in the opposition. The point of the IDC process is to avoid costly and time-consuming discovery motions like the one Plaintiff had to file. If Defendant had simply answered Plaintiff's requests for dates for an IDC, this entire motion could have been avoided. The Court expects defense counsel to take the IDC process seriously in the future.